

25STCV07057 25STCV07057

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Case Number: 25STCV07057 Hearing Date: July 31, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/31/2026

CASE NUMBER: 25STCV07057

CASE NAME: ROCCO DI NOBILE vs DR. KAMRAN TOLUIE, M.D.

MOVING PARTY: Defendant Dr. Kamran Toluie,
M.D.

OPPOSING PARTY: Plaintiff Rocco Di Nobile

PROCEEDING: Motion for summary judgment

RULING SUMMARY: Defendant Kamran Toluie, M.D.'s Motion
for Summary Judgment is granted. Defendant
shall submit a proposed Judgment. The
Court sets an Order to Show Cause re Entry of Judgment for _____, 2026, at
8:30AM. The FSC and trial are taken off
calendar.

Background

On March 12, 2025, plaintiff Rocco Di Nobile
("Plaintiff") filed a Complaint against defendant Kamran Toluie, M.D. ("Defendant"),
alleging one cause of action for Medical Negligence.

Plaintiff alleged the following: On or about April 19, 2019, he presented to Defendant and was diagnosed with a heart defect which needed a heart ablation. Plaintiff continued treatment with Defendant for the next five years and (1) would complaint to Defendant he did not feel right, and (2) would be assured by Defendant that treatment was correct. But Plaintiff still did not feel right, and so, went to another doctor who determined that the Flecainide prescribed by Defendant was prescribed incorrectly and Plaintiff needed surgery thereafter to insert stents into his arteries.

On April 24, 2025, Defendant filed his Answer.

On May 04, 2026, Defendant filed this Motion for Summary Judgment. No Opposition has been filed.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67 [citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382].) ~~~~~

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As to each claim as framed by the complaint, the party moving for summary judgment must satisfy the initial burden of proof by

presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc. § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

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Once the defendant has met that burden, the burden shifts to the opposing party to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) ∴

DISCUSSION

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.) “Both the standard of care and defendants’ breach must normally be established by expert testimony in a medical malpractice case.” ∴ *Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467. ∴

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Thus, in a medical malpractice case, “[w]hen a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” ∴ (*Munro v. Regents of University of California* (1989) 215 Cal. App. 3d 977, 984-985 [citations omitted].) An expert declaration, if uncontradicted, is conclusive proof as to the prevailing standard of care and the propriety of the particular conduct of the health care provider. ∴ (*Starr v. Mooslin* (1971) 14 Cal. App. 3d 988, 999.)

Defendant

offers the declarations of two experts: Warren D. Johnston, M.D., FACC, FACP (“Dr. Johnston”) and Raffi Simonian, Pharm D (“Simonian”) in support of the motion for summary judgment.

Dr. Johnston

is board-certified by the American Board of Internal Medicine and the American Board of Cardiovascular Disease. (Decl. of Warren D. Johnston, M.D., FACC, FACP ¶ 1.) During his career, he had a fellowship in cardiology at the University of California, Irvine from 1980 to 1982 and has been working as the Department Chairman of Cardiology at St. Joseph Heritage Medical Group since 2013. (Ibid.) Dr. Johnston is readily familiar with the standard of care for cardiology medicine physicians. (Id. ¶ 2.) After reviewing the case materials combined with his knowledge, Dr. Johnston determined that at all times relevant, “Dr. Toluie did not cause Mr. Di Nobile’s alleged injuries, such as alleging he developed coronary artery disease as a result of Dr. Toluie’s prescription of Flecainide.” (Id. ¶ 58.)

Simonian is a

pharmacist licensed to practice pharmacy in the State of California who received his Doctor of Pharmacy from the University of Southern California. (Decl. of Raffi Simonian, PharmD. ¶ 1). Simonian served as the Pharmacist and Director of the Department of Pharmacy at the University of California, San Diego Health from 1979 to 2018; was appointed to the California State Board of Pharmacy (the “Board”) in 1991; served as President of the Board for the years of 1993 and 1994; was an assistant Clinical Professor at the University of California, San Francisco, School of Pharmacy from 1981 to 2018; and was the Director of the Department of Pharmacy, Inpatient Pharmacy Services- UC San Diego Health from 1992 to 2010. (Ibid.) After reviewing the case materials combined with his knowledge, Simonian determined that at all times relevant, Plaintiff’s “coronary artery disease is not a result of his long-term use of Flecainide” (Id. ¶ 36.)

Dr. Johnston and Simonian’s

opinions are sufficient to show the absence of a triable issue of causation.

Therefore, Defendant has satisfied his initial burden

of proof by presenting facts to negate an essential element, or to establish a defense.

The

burden shifts to Plaintiff.

Plaintiff

has not opposed the motion. The Court construes the lack of opposition as a concession on the merits. (See D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728 at fn. 4 [where nonmoving party fails to oppose a ground for a motion "it is assumed that [nonmoving party] concedes" that ground].) Further, as Plaintiff has not provided evidence contradicting the Defendant's expert declarations, Dr. Johnston and Simonian's declarations are conclusive proof as to the issue of causation. (Starr v. Mooslin, 14 Cal.App.3d at 999.)

As

there are no material facts in dispute, the Motion for Summary Judgment is granted.

Conclusion

Defendant

Kamran Toluie, M.D.'s Motion for Summary Judgment is granted. Defendant is ordered to submit a proposed Judgment forthwith. The Court sets an Order to Show Cause re Entry of Judgment for _____, 2026, at 8:30AM. The FSC and trial dates are taken off calendar.

Date: 07/31/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court